

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**2026CUWM063095: ECOLOGICAL RIGHTS FOUNDATION vs COUNTY OF  
VENTURA, et al.**

**09/22/2026 in Department 44  
Demurrer**

**Department Rules.** Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

**Remote Appearances.** The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

**ZOOM Registration Link:**

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

**Tentative Rulings.** Oral argument should address the tentative decision. To submit on the tentative decision, email [courtroom44@ventura.courts.ca.gov](mailto:courtroom44@ventura.courts.ca.gov) before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Notice of Ruling.** Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

**Motion:** Demurrer to Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief (*Opposed*)

**Tentative Ruling:**

Petitioner Ecological Rights Foundation's request for judicial notice is GRANTED as to the existence, contents, and legal effect of the federal court filings attached as Exhibits 1 and 2 to the declaration of Stuart Wilcox. The Court does not take judicial notice of the truth of disputed factual assertions contained in those documents.

Respondents' demurrer to the first, second, third, and fourth causes of action under Code of Civil Procedure section 430.10, subdivision (e), is OVERRULED. The demurrer under Code of Civil

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Procedure section 430.10, subdivision (d), for failure to join the United States Army Corps of Engineers is also OVERRULED. The Court's ruling does not determine that EcoRights is entitled to all relief requested or authorize any action inconsistent with federal law or required federal approvals. The Petition alleges that the local respondents' ongoing operation and maintenance of the Santa Paula Creek flood control project violate specific statutory duties and their public trust obligations. These allegations support traditional mandate notwithstanding the asserted absence of a private statutory right of action. The U.S. Army Corps of Engineers's ("Corps") continuing regulatory role limits available relief, but the present record does not establish that no effective relief can be granted against Respondents without impairing the Corps' interests.

Respondents shall file and serve their answer to the Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief within 30 days after service of notice of this ruling.

The Court continues the case management conference to **November 20, 2026, at 8:35 a.m.** To the extent the parties wish the Court to rely on their previously filed joint case management statement, no new joint statement is required. However, if the parties wish to provide any updated information, a new joint statement is required to be filed at least 10 days prior to the CMC.

Petitioner to give notice.

## **I. Background**

### **A. Factual Background**

Petitioner Ecological Rights Foundation ("EcoRights") is a nonprofit environmental organization whose members allegedly use Santa Paula Creek and the Santa Clara River watershed for recreation, wildlife observation, and related activities. EcoRights alleges that harm to the Southern California population of steelhead and other wildlife diminishes its members' use and enjoyment of those resources. (Petition, ¶¶ 6-7, 19-22.)

Respondents are the County of Ventura, Ventura County Watershed Protection District ("District"), County Board of Supervisors, and Dr. Sevet Johnson in her official capacity as County Executive Officer. The Petition alleges that these entities and officials participate in or oversee the project and bear responsibility for the challenged conduct. (*Id.*, ¶¶ 8-12.) The parties often refer to them collectively as the "County"; Respondents clarify that the District is the project's nonfederal sponsor. (Reply, p. 4, fn. 1.)

The dispute concerns the Santa Paula Creek Flood-Risk Management Project ("Project"), which includes an approximately two-mile flood control channel and a fish ladder intended to permit fish migration through the Project area. The U.S. Army Corps of Engineers's ("Corps") constructed an earlier flood control project in 1974. After that project deteriorated, Respondents requested a replacement and entered into a 1996 local cooperation agreement with the federal government. Construction of the replacement began in 1997; construction of the existing fish

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ladder allegedly ended in 2002. (Petition, ¶¶ 47-54.) Thus, the Corps designed and built the Project, while Respondents allegedly agreed to assume its operation, maintenance, repair, replacement, and rehabilitation following completion. The Petition alleges that the Corps formally transferred those responsibilities in May 2014 and that Respondents own the Project structures and the underlying property interests. (*Id.*, ¶¶ 51, 64-65, 94-95, 183-184.)

EcoRights alleges two related problems. First, the channel and fish ladder have design defects, storm damage, and sediment accumulations that obstruct upstream and downstream fish passage. Second, Respondents allegedly compound these conditions through inadequate maintenance and harmful sediment and vegetation removal. The alleged consequences include fish being killed by equipment, stranded by dewatering, and prevented from migrating. (Petition, ¶¶ 77-78, 88-102, 133-134.) The Petition identifies vegetation removal in November 2022 and sediment removal between November 2023 and January 2024, and alleges continuing and planned future conduct of the same kind. (*Id.*, ¶¶ 97-101.)

The National Marine Fisheries Service issued biological opinions addressing the Project, including a 2020 opinion recommending maintenance measures, studies, and plans to protect steelhead. EcoRights relies extensively on these materials to explain the alleged harm and possible corrective measures, but expressly disclaims a federal cause of action. (Petition, ¶¶ 4, 66-78, 81.) It also alleges that Respondents' streambed alteration agreement has expired or, alternatively, that Respondents have violated its conditions, and that Respondents lack state authorization for the alleged take of steelhead. (*Id.*, ¶¶ 56-58, 105, 141-148, 153-156, 181-190.)

The four causes of action include: (1) Fish and Game Code section 1602, governing specified streambed and flow alterations; (2) Fish and Game Code sections 5901 and 5948, concerning fish-passage obstructions and artificial barriers; (3) the California Endangered Species Act (CESA), particularly the prohibition on unauthorized take in Fish and Game Code section 2080; and (4) the public trust doctrine. Each seeks mandate and alternative declaratory and injunctive relief. The fourth also invokes the common law. (Petition, ¶¶ 151-214.) Requested relief ranges from lawful maintenance and obtaining required approvals to repair or replacement of Project structures. (*Id.*, ¶¶ 159-160, 175-176, 194-195, 207, 210-214; prayer, ¶¶ A-C.)

### **B. Procedural Background**

EcoRights filed the verified Petition and Complaint on March 30, 2026 (collectively, "Petition"). The parties agreed to treat service as effective May 4, 2026. Respondents filed this demurrer on June 1, challenging each cause of action under Code of Civil Procedure section 430.10, subdivision (e), and all causes of action under subdivision (d) for failure to join the Corps. Respondents seek dismissal without leave to amend. (Demurrer, pp. 3-4, grounds 1-5; June 25, 2026 Joint Case Management Statement, p. 2.)

The June 22 stipulation provides for a discovery stay until dismissal or the filing of answers and for the parties to confer about Respondents' request to dismiss Dr. Johnson. The order included with that filing continued the demurrer and case management conference to September 22, 2026 (June 22, 2026 Stipulation and Order, ¶¶ 1-5 & p. 4.)

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EcoRights filed its opposition and request for judicial notice on September 9; Respondents filed their reply on September 15.

## **II. Preliminary Matters**

### **A. Meet and Confer**

District counsel Nicholas Jacobs declares that he spoke by telephone with EcoRights' counsel on May 26, 2026, discussed the grounds and principal authorities for the demurrer, and answered counsel's questions. The declaration adequately describes compliance with the meet-and-confer requirement. (Code Civ. Proc., § 430.41, subd. (a); Jacobs Decl., ¶¶ 2-6.)

### **B. Request for Judicial Notice**

EcoRights requests judicial notice of two federal court filings in *Ecological Rights Foundation v. U.S. Army Corps of Engineers*, case No. 2:25-cv-04616-SK: the County's memorandum supporting its motion to dismiss, and the consent decree entered March 20, 2026. Wilcox authenticates them as Exhibits 1 and 2. (RJN, pp. 1-3; Wilcox Decl., ¶¶ 2-3, Exs. 1-2.) Judicial notice is appropriate under Evidence Code sections 452, subdivision (d), and 453.

The Court takes notice of the filings, the positions taken, and the consent decree's operative terms and legal effect. It does not accept disputed assertions in the memorandum or the decree's factual recitals as independently proven facts. Judicial notice of a court record does not establish the truth of factual assertions merely because they appear in that record. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565.) The decree itself disclaims admissions of fact and liability. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, ¶ 21.)

The decree is relevant to the claimed availability of an adequate federal remedy and the Corps' asserted indispensability. It requires the Corps to request specified planning work and reports from the County, transmit information to EcoRights, and evaluate certain maintenance deficiencies. It also preserves federal jurisdiction to enforce the decree. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, ¶¶ 1-15, 18.) Its effect is addressed below; taking notice does not resolve the parties' competing descriptions of what Respondents have done or can do.

## **III. Discussion**

### **A. Legal Standard: Demurrer and Traditional Mandamus**

A demurrer tests the pleading's legal sufficiency. The Court accepts properly pleaded material facts and reasonable inferences, but not conclusions of law, and reads the pleading as a whole in context. Judicially noticeable matters may also be considered. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A cause of action survives if its factual allegations support relief under an available legal theory, regardless of the pleader's characterization. (*Quelimane Co. v. Stewart Title*

*Guaranty Co.* (1998) 19 Cal.4th 26, 38-39.) The present question is whether EcoRights has stated viable claims, not whether it has proved the environmental violations or established entitlement to every requested remedy.

Traditional mandate under Code of Civil Procedure section 1085 requires a clear, present, usually ministerial duty on the respondent's part and a clear, present, beneficial right to performance; the petitioner ordinarily must also lack a plain, speedy, and adequate remedy in the ordinary course of law. (Code Civ. Proc., § 1086; *Water Audit California v. Merced Irrigation District* (2025) 111 Cal.App.5th 1147, 1179-1180.) A court may compel the exercise of legally required discretion under the correct legal standard, although it ordinarily may not dictate the discretionary result. (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.)

### **B. The Absence of a Private Statutory Cause of Action Does Not Dispose of the Mandate Claims**

Respondents argue that the Fish and Game Code entrusts enforcement to the Department of Fish and Wildlife (CDFW), the Fish and Game Commission, and public prosecutors, without authorizing a private citizen suit. They rely on the regulatory and penalty provisions accompanying the substantive statutes. (Moving memorandum, pp. 7-12.) A statutory violation does not itself create a private cause of action; the Legislature must have manifested an intent to create one. (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596.) EcoRights' assertion that a prohibition on unlawful conduct necessarily authorizes a private lawsuit is therefore too broad.

Nevertheless, even assuming these Fish and Game Code provisions do not independently create private causes of action, the demurrer does not follow. EcoRights expressly seeks traditional mandate against public entities and an official to enforce alleged public duties. (Petition, ¶¶ 159, 175, 194, 210.) This remedy requires its own analysis. Respondents' authorities concerning implied private causes of action do not establish that a public agency's mandatory duties are unenforceable through Code of Civil Procedure section 1085.

The published discussion in *Water Audit* is particularly instructive. It holds that a public irrigation district's duty under Fish and Game Code section 5935 to maintain an existing fishway is mandatory, notwithstanding CDFW's separate prosecutorial discretion and the possibility of legally justified noncompliance. Discretion over how to perform a required duty does not necessarily make performance optional. (*Water Audit, supra*, at pp. 1181-1184, 1187.) Respondents correctly observe that section 5935 is not pleaded here. The case does not establish that every Fish and Game Code duty is ministerial; it supplies the governing distinction between a regulated public entity's duties and the regulator's enforcement choices. Each pleaded duty must still be examined.

EcoRights alleges concrete interests of its members in the affected waters and wildlife, continuing injury to those interests, and the absence of an adequate remedy. (Petition, ¶¶ 6-7, 17-22.) Respondents have not demonstrated that these allegations fail to support beneficial interest in performance of the asserted duties. The Court need not decide whether each statute also implies an independent private cause of action if the same pleaded claim is viable in mandate.

**C. First Cause of Action: Streambed Alterations**

Fish and Game Code section 1602, subdivision (a), prohibits specified substantial alterations of stream flow, beds, channels, and banks unless its notification and authorization requirements are satisfied. Where CDFW determines that the activity may substantially adversely affect a fish or wildlife resource and issues an agreement, the activity must comply with that agreement. (Fish & G. Code, § 1602, subd. (a)(4)(B).) The statute contains alternative authorization routes; the governing requirement is compliance with the applicable statutory conditions, not an absolute rule that every activity requires an agreement.

The Petition alleges substantial alterations through Respondents' maintenance operations without current authorization. It alternatively alleges specific violations of an existing agreement, including equipment crossings that increase turbidity, repeated crossings without the required crossing structure, and failure to restore the low-flow channel. (Petition, ¶¶ 58, 82, 104, 141-148, 153-156.) These allegations identify conduct prohibited absent statutory compliance and facts supporting an asserted violation.

CDFW's discretion in issuing, extending, or enforcing an agreement does not give Respondents discretion to undertake otherwise prohibited alterations without authorization. Nor is the claim merely one to enforce an ordinary contract: section 1602 itself requires compliance with the applicable agreement as a condition of the authorized activity. EcoRights expressly seeks compliance with that statute. (Petition, ¶¶ 156, 159-160.) The Court need not determine an agreement's terms or expiration date as a disputed evidentiary matter on this demurrer.

A later remedy must respect CDFW's authority and any applicable exceptions or lawful approvals. It may not dictate what permit CDFW must issue. Such limitations do not establish that Respondents' own allegedly unauthorized conduct is beyond review. The first cause of action sufficiently pleads a claim for mandamus.

**D. Second Cause of Action: Fish Passage**

Fish and Game Code section 5901 prohibits constructing or maintaining a device or contrivance that prevents, impedes, or tends to impede upstream or downstream fish passage in specified districts, except as otherwise provided in that code. The Petition alleges that Santa Paula Creek lies within a covered district and that Respondents maintain the fish ladder and channel in conditions obstructing fish passage. It also alleges debris accumulations and barriers attributable to Respondents' maintenance practices. (Petition, ¶¶ 29, 77, 83-84, 91-92, 104, 165-171.)

Respondents contend that CDFW's authority to impose penalties under Fish and Game Code section 12025.1 makes enforcement exclusively administrative. The statute's penalty mechanism does not, by itself, eliminate traditional mandate to enforce a public entity's underlying mandatory duty. *Water Audit* discusses the section 5901 prohibition and associated penalties while distinguishing CDFW's prosecutorial discretion from the regulated entity's duty of compliance. (*Water Audit, supra*, at pp. 1182-1183.) The Court applies that distinction here without treating *Water Audit* as a holding about every statute pleaded in this action.

Respondents also argue that Fish and Game Code section 5948 requires a Commission determination before judicial review and excludes structures permitted by law. (Moving memorandum, p. 11 & fn. 7.) Section 5948 addresses artificial barriers that prevent fish passage or are deleterious to fish as determined by the Commission. The parties disagree about the reach of the Commission-determination language. It is unnecessary to resolve that separate question to decide the demurrer to the second cause of action as a whole: the allegations support the section 5901 theory regardless. (*Quelimane, supra*, at pp. 38-39.) The ruling should not be read as deciding that every aspect of EcoRights' section 5948 theory is independently sufficient.

General legislative authorization for the flood control Project likewise does not establish, on the face of this pleading, that every alleged obstruction or maintenance practice is authorized under the Fish and Game Code. The Court is not presently ordering removal of an authorized federal structure. The second cause of action survives because it alleges specific ongoing conduct within Respondents' operational responsibility that violates a mandatory fish-passage prohibition.

### **E. Third Cause of Action: Unauthorized Take Under CESA**

Fish and Game Code section 2080 expressly prohibits a person or public agency from taking a listed endangered or threatened species except as authorized by the statutory scheme. "Take" includes hunting, pursuing, catching, capturing, or killing, and attempts to do so. (Fish & G. Code, § 86.) The Petition alleges that steelhead are listed under CESA, that Respondents' continuing operations kill or capture them, and that Respondents lack take authorization. (Petition, ¶¶ 105, 181-190.) The factual allegations include death from equipment operations and channel dewatering, as well as anticipated repetition of harmful maintenance practices. (*Id.*, ¶¶ 97-102.)

These allegations go beyond a bare assertion that the Project harms habitat. The Court need not adopt every use of "harm," "harass," or "take" in the Petition as a correct statement of California law. Allegations of ongoing killing and capture, coupled with the alleged absence of authorization, are sufficient for the present challenge. The claim's prospective component also does not depend on treating every historical maintenance event as a violation occurring while CESA protection applied. (Petition, ¶¶ 99, 101, 183, 185-190, 194-195.)

CDFW's discretion to grant or deny take authorization does not permit a public agency to engage in unauthorized take. A mandate remedy must address proven conduct within Respondents' control and preserve lawful permitting choices; it cannot require CDFW to approve a permit. Respondents' argument that no mandatory duty exists because the prohibition applies in many factual settings is unpersuasive. The third cause of action sufficiently alleges breach of a mandatory statutory prohibition.

### **F. Fourth Cause of Action: Public Trust Duties**

The public trust doctrine requires the State to consider trust interests in planning and allocating water resources and protect trust uses when feasible. It does not require protection at the expense of every competing public interest. (*National Audubon Society v. Superior Court* (1983) 33

Cal.3d 419, 446-447.) A county, as a subdivision of the State, shares responsibility for administering the trust. (*Environmental Law Foundation v. State Water Resources Control Bd.* (2018) 26 Cal.App.5th 844, 868.)

Respondents' contention that only CDFW may be sued is inconsistent with those principles. *Center for Biological Diversity, Inc. v. FPL Group, Inc.* (2008) 166 Cal.App.4th 1349 distinguishes an improper public trust action against private operators from an appropriate action against public agencies responsible for discharging trust obligations. It specifically recognizes the potential responsibility of a county or other state subdivision. (*Id.* at pp. 1367-1370 & fn. 19.) Here, EcoRights sues public respondents alleged to own, authorize, operate, and oversee the Project, and to have failed to consider and protect affected trust resources. (Petition, ¶¶ 8-12, 94-95, 199-207.)

Respondents have a stronger point concerning the limits of judicial supervision. In *Monterey Coastkeeper v. Central Coast Regional Water Quality Control Bd.* (2022) 76 Cal.App.5th 1, 21-22, the court rejected a broad mandate theory that would require ongoing judicial supervision of discretionary resource-management decisions. A general command to protect trust resources statewide would either accomplish little or place the court in the role of regulator. The Court does not assume that role here either.

The present Petition, however, identifies a particular Project, specific maintenance practices and obstructive conditions, and an alleged failure to consider the resulting injury to trust resources. (Petition, ¶¶ 85, 96-104, 202-207.) Liberally construed, it seeks review of Respondents' failure to apply the trust doctrine to their own continuing Project decisions. This theory permits relief requiring legally adequate consideration without directing the agency's discretionary choice of engineering design or maintenance method. (*Common Cause, supra*, at p. 442; *National Audubon, supra*, at pp. 446-447.)

The allegation that fisheries protection necessarily takes precedence over flood control is a legal conclusion the Court need not accept. (Petition, ¶ 203.) Nor does the public trust doctrine automatically require the precise reports or replacement structures EcoRights favors. The claim survives on the narrower duty to consider affected trust resources and protect them when feasible in making the challenged decisions. Whether Respondents have already discharged that duty, and whether any additional review or action is required, cannot be resolved from the disputed allegations on this demurrer.

#### **G. Neither the Federal Proceeding nor the Breadth of the Prayer Requires Dismissal**

Respondents argue that federal Endangered Species Act litigation supplies an adequate alternative remedy and that the requested writ would improperly command general compliance or compel federally prohibited alterations. (Moving memorandum, pp. 14-16; Reply, pp. 5-6, 10.) EcoRights expressly alleges the absence of an adequate remedy for the state duties and ongoing injuries asserted here. (Petition, ¶¶ 17-18, 158, 174, 193, 209.) The federal decree does not conclusively defeat those allegations.



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The decree requires the Corps to request planning work and information from the County; it does not directly order the County to perform that work. Its enforcement provision requires the Corps to evaluate specified deficiencies and respond consistently with its enforcement framework, while declining to commit the Corps to particular enforcement steps apart from specified deficiency notices. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, ¶¶ 3-15.) Enforcement of these obligations against the Corps is not necessarily equivalent to obtaining relief against Respondents for their own state-law violations. The decree's retained jurisdiction concerns enforcement of the decree, and its covenant not to sue is directed to claims against the Corps. (*Id.*, ¶¶ 2, 18-19.)

The County's earlier federal memorandum does not establish judicial estoppel merely because EcoRights views its arguments as inconsistent. No such determination is needed. The controlling point is that the judicially noticed decree and pleadings do not demonstrate an adequate, coextensive remedy that necessarily bars this state mandate action. Respondents' reply also clarifies that they do not contend EcoRights necessarily would succeed on a federal claim. (Reply, p. 10.)

The prayer is broader than the Court could automatically grant. Paragraph 68 disclaims enforcement of federal law, yet prayer paragraph C asks for implementation of all aspects of the federal biological opinion's reasonable and prudent alternative and related conditions. These federal measures are not independently enforceable in this action merely because the Petition describes them. EcoRights must establish the state-law duty supporting any relief, the relevant violation, and Respondents' legal ability to perform the ordered acts.

Similarly, federal approval requirements must be respected. Title 33 United States Code section 408 and title 33 Code of Federal Regulations section 208.10(a)(5) restrict alterations to federal flood control works without the required federal approval. The Court cannot override these restrictions or compel the Corps to approve a redesign. But a prayer for excessive relief does not defeat an otherwise viable claim where narrower lawful relief may be available. (*California Trout, Inc. v. Superior Court* (1990) 218 Cal.App.3d 187, 204.) Depending on the evidence, relief could address particular unlawful maintenance practices, require an appropriate decision under state law, or require pursuit of an authorization within Respondents' responsibility. The ruling on demurrer grants none of these remedies now.

## **H. The Corps' Absence Does Not Require Dismissal on This Record**

### **1. Governing principles**

Code of Civil Procedure section 389 requires a two-step inquiry. Under subdivision (a), an absent person is necessary if complete relief cannot be accorded among existing parties, or if the person's claimed interest may be impaired or may expose an existing party to a substantial risk of inconsistent obligations. If a necessary person cannot be joined, subdivision (b) requires consideration of prejudice, ways to lessen prejudice, adequacy of a judgment, and adequacy of the plaintiff's remedy if the action is dismissed. (*County of San Joaquin v. State Water Resources Control Bd.* (1997) 54 Cal.App.4th 1144, 1149-1150.) Sovereign immunity does not eliminate the need to examine necessity and the statutory equitable factors.

EcoRights goes too far in suggesting that potential inconsistent obligations of Respondents are irrelevant because Respondents already are parties. (Opposition, p. 14.) Subdivision (a)(2)(ii) expressly protects existing parties from that risk. Conversely, the Corps' historical involvement and continuing regulatory authority do not automatically establish that every state-law claim against the local operator must be dismissed. The inquiry turns on the claims and the practical effect of the relief that can lawfully be granted.

## **2. The Allegations Support Potential Relief Directed to Respondents' Conduct**

The Corps has substantial interests in the Project. The Petition describes federal design and construction, agreements allocating responsibilities, continuing oversight, and requested structural modifications. (Petition, ¶¶ 47-55, 64-80, 88-95; prayer, ¶¶ B-C.) An order compelling a particular redesign, revising the Corps' manual, or declaring the Corps' own conduct unlawful could implicate those interests and cannot be justified merely by omitting the Corps from the caption.

Nevertheless, the Petition also alleges specific violations in Respondents' own maintenance activities and failure to consider trust resources. It alleges that Respondents assumed operational responsibility in 2014 and have independently carried out the harmful activities. (Petition, ¶¶ 64-65, 79-80, 96-105, 144-148, 204-207.) Nothing judicially noticeable conclusively establishes that the Corps requires Respondents to engage in the particular conduct alleged to violate state law or that Respondents lack authority to take any lawful corrective action. Relief confined to this conduct need not adjudicate the Corps' liability, alter its approvals, or compel it to act.

The Corps' statement that it intends to promptly consider a County request for permission to change the Project is relevant but is not an approval, waiver of immunity, or agreement that any proposed change is feasible. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, unnumbered recital at p. 4.) The point is narrower: federal approval requirements constrain relief but do not establish that all meaningful relief against Respondents is impossible.

## **3. The Principal Cited Decisions Do Not Compel Dismissal**

In *County of San Joaquin*, the action sought to set aside a water-rights order modifying federal permits and thereby disrupt the Bureau of Reclamation's operations. Federal interests could not be protected while granting the requested relief, and an overlapping federal action offered an adequate remedy. (*County of San Joaquin, supra*, at pp. 1150-1151, 1155-1156.) Here, the Petition need not succeed by invalidating a Corps permit or ordering a change in federal operations. Its allegations of Respondents' own unlawful maintenance and failure to discharge state duties permit a narrower adjudication. The federal consent decree also does not establish equivalent relief against Respondents.

In *Dreamweaver Andalusians, LLC v. Prudential Ins. Co. of America* (2015) 234 Cal.App.4th 1168, 1175-1177, the absent federal agency's engineering work was central to the alleged landslide, and the record supported prejudice and inconsistent obligations arising from related liability and indemnity issues. This decision supports close examination of the Corps' role here,

especially concerning structural defects. It does not resolve whether independently alleged maintenance violations can be adjudicated without the federal designer.

*Shuler v. Capital Agricultural Property Services, Inc.* (2020) 49 Cal.App.5th 62, 70-71, later held that the federal agency was no longer indispensable after its liability had been resolved by a federal consent judgment. EcoRights overstates that analogy if it treats its settlement as extinguishing all Corps interests. The present decree preserves a continuing regulatory relationship and federal enforcement jurisdiction; its covenant not to sue is time-limited, and it disclaims admissions. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, definition I(s), ¶¶ 2, 18-21.) The settlement is relevant to the practical inquiry but does not alone establish either indispensability or its absence.

#### **4. The Statutory Factors Favor Allowing the Action to Proceed**

Even assuming that the Corps qualifies as necessary for some of the requested relief and cannot be joined, dismissal of all four causes of action is not warranted under Code of Civil Procedure section 389, subdivision (b), on this record.

First, prejudice is substantial if the Court orders structural changes inconsistent with federal requirements or purports to control the Corps. The identified maintenance and state-law decisionmaking claims, however, do not necessarily require such an order. Respondents retain the ability to establish the precise federal constraints through an appropriate evidentiary record.

Second, relief can potentially be shaped to preserve the Corps' approvals, require compliance with federal law, and only address conduct within Respondents' lawful control. A remedy may be narrower than EcoRights' preferred replacement of the fish ladder. The possibility of a narrower remedy matters because the Petition pleads operational violations as well as structural deficiencies.

Third, a judgment addressing Respondents' independent statutory and public trust duties can provide meaningful relief without binding the Corps. It need not resolve every environmental or engineering problem associated with the Project to have practical value among the existing parties.

Fourth, the present record does not establish an adequate substitute if the action is dismissed. The consent decree permits enforcement of the Corps' specified promises; it does not directly adjudicate Respondents' state duties or require their performance of the work EcoRights seeks. (Wilcox Decl., ¶ 3, Ex. 2, consent decree, ¶¶ 2-15, 18.)

On balance, Respondents have not established that the action must be dismissed in equity and good conscience. The Court should overrule the nonjoinder ground without deciding that the Corps could never become necessary to a particular form of relief. Any later determination must address the actual record and proposed remedy. No reliance is placed on the unpublished joinder discussion in *Water Audit*; the citations to that decision above concern its published mandate analysis.

**I. Declaratory Relief and Leave to Amend**

EcoRights contends that the demurrer must fail because Respondents' opening memorandum did not separately analyze Code of Civil Procedure section 1060 or the common-law label. (Opposition, pp. 2-3.) This does not furnish an independent reason to disregard Respondents' substantive challenges. Declaratory relief depends on a justiciable controversy concerning enforceable rights and duties; a change of label does not cure an otherwise defective substantive theory. Here, however, the Petition alleges an actual controversy about continuing conduct and the state-law duties discussed above. (Petition, ¶¶ 23, 160, 176, 195, 211, 214.) Because these underlying theories survive the demurrer, Respondents' derivative-failure argument does not justify dismissal of the declaratory requests. (Reply, pp. 9-10.)

The Court's disposition here is to overrule the demurrer, so no amendment is required. Respondents' request to deny leave as futile therefore does not arise. This ruling remains confined to pleading sufficiency and nonjoinder on the present record, leaving the merits and the precise scope of lawful relief for later determination.